

person shall have been so committed, shall exhibit interrogatories in pursuance of the 7th section of an Act of Parliament of this Province passed in the seventh year of the reign of Her Majesty Queen Victoria, entitled "An Act to abolish imprisonment in execution for debt and for other purposes therein mentioned," and in case the party exhibiting such interrogatories shall desire that such person be examined personally upon such interrogatories, he shall be at liberty to have him so examined upon obtaining an Order for that purpose within the period allowed by the Statute for exhibiting such interrogatories, which Order may be issued upon petition or motion of course and shall be served without any unnecessary delay upon such prisoner, his Solicitor, or Agent, and thereupon such prisoner shall be at liberty to apply to the Vice Chancellor or to the Officer of the Court before whom such examination is to take place for an appointment for that purpose, which appointment shall be served upon the Solicitor or Agent of the opposite party, and such examination shall not be proceeded with *ex parte* unless it shall appear to the person before whom such examination shall take place that such appointment was so served a sufficient time before such examination to allow of the opposite party attending the same; and it shall be the duty of the person, in whose custody such prisoner may be, to attend with such prisoner at such examination, and the service upon him of such Order and appointment aforesaid shall be a sufficient warrant to him for that purpose, and such examination may be continued *de die in diem* as the person, before whom such examination shall take place, shall think fit. And lastly it is ordered that, in case such prisoner shall be in custody in the Home District, such examination may be had before the Vice Chancellor or before the Master in ordinary of this Court, and, in case such prisoner shall be in custody elsewhere than in the Home District, such examination may be had before a Master Extraordinary of this Court in the District in which such prisoner may be in custody.

(164). That the Sheriff in each District in that part of this Province formerly constituting Upper Canada shall within the limits of his district perform the duties which according to the practice of the Court heretofore have been performed by the Messenger or Sergeant-at-arms, and all writs or process of the Court, which by the law or practice of the Court have been directed to the Messenger or Sergeant-at-arms, shall be directed to the Sheriff of the district where the same is to be executed, and in no case

(164).
January 1845.
Sheriffs to perform the duties of Messenger.

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